STANDARD OPERATING PROCEDURE			G-1200
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/08/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT STANDARDS OF CONDUCT AND CORE VALUES	CROSS REFERENCE G-1000 Moto, MISSION STATEMENT AND VALUES G-1400 Harassment G-2100 Complaint Procedure G-2300 Member Rights and Requirements			

I. Purpose:

The purpose of this policy is to establish the Standards of Conduct for all Sarpy County Sheriff's Office employees. These standards are based on our Core Values, which dictate the behavior and conduct of all employees, whether on-duty or off-duty.

II. Policy:

Standards of Conduct and Core Values are essential to maintain a functioning and properly disciplined organization, and to preserve public trust. Further, all employees shall understand and follow our Standards of Conduct, Core Values, policies, and procedures. Employees shall be subject to disciplinary action if they violate such via commission, omission, actions, inactions, decisions, indecisions and/or conduct.

The Core Values of the Sheriff's Office are Integrity, Accountability, Respect, Courage, Loyalty, and Service.

III. Core Values and Standards of Conduct: Employees of the Sarpy County Sheriff's Office are highly visible representatives of Sarpy County and are entrusted with the responsibility of ensuring the safety and well-being of the community. Since the actions of the Sheriff's Office employees have a major impact on the community, the standards of conduct for those employees are higher than those applied to the public. In this regard, on-duty and off-duty employees shall conduct themselves in a manner that does not bring discredit upon themselves, the Sheriff's Office or Sarpy County.

A. INTEGRITY: Employees shall conduct themselves with a high standard of moral character. Integrity means to do the right thing, regardless of the personal benefit or detriment. Employees shall be trustworthy and honest.

1. **Departing from the Truth:** Employees shall not depart from the truth in giving testimony or in connection with any official duty, including, but not

limited to, communications and interactions with the public or any other Sarpy County employee. However, the use of deception is acceptable when an employee is conducting an investigation or during an incident where the safety of employees or the integrity of the investigation requires its use.

Deception may not be used by an employee when he or she is the subject of an investigation or being questioned by another employee regarding official duties.

As part of an investigation, or upon the order of a supervisor or command officer, an employee shall truthfully and completely answer all questions that are specifically, directly, and narrowly related to the scope of his or her employment and the Sheriff's Office operations (see also G-2300 Members Rights and Requirements).

Deception may never be used to coerce an individual to waive his or her Miranda rights, coerce a consent search, or to coerce the waiver of any other statutory or constitutional right.

2. **Appropriate Property:** Employees shall not willfully or knowingly appropriate any lost or found property, evidence, or county property for their own use.

3. **Accept Gifts, Gratuities, Bribes, or Rewards:** No employee shall accept from any person, business, or organization any gift (which shall include, but shall not be limited to, money, tangible or intangible property, food, beverage, loan, promise, service, or entertainment) for the benefit of himself or herself, other person or the Sheriff's Office if it may be reasonably inferred that the person, business, or organization:

   a) Seeks to influence action of an official nature or seeks to affect the performance or nonperformance of an official duty.

   b) Has an interest that may be substantially affected directly or indirectly by the performance or nonperformance of an official duty.

   c) Sheriff's Office employees are not restricted from accepting a discounted meal so long as it does not conflict with the above restrictions. The Sheriff's Office encourages employees who have received a discounted meal to include the discounted portion in the gratuity, if possible.

B. **Accountability:** All employees shall be responsible for their actions, inactions, decisions, indecisions, and conduct. Employees are obligated to help build and maintain a positive workplace culture. Supervisors and commanders are duty-

bound to demonstrate competency, fairness, and leadership, and set examples and expectations for their subordinates.

1. **Conduct Unbecoming:** Employees shall always conduct themselves, both on and off-duty, in such a manner as to reflect most favorably on the Sheriff's Office. Conduct unbecoming of an employee shall include, but is not limited to:

   a) Discrediting or disgracing any employee or the Sheriff's Office.

   b) Weakening public trust of any employee or the Sheriff's Office.

   c) Impairing the morale, efficiency, or operation of the Sheriff's Office.

2. **Violate the Law:** Employees shall obey all federal, state, and local laws.

   a) If an employee is served with a Protection Order, cited, arrested, or becomes the defendant in a judicial or quasi-judicial proceeding outside of his or her Sheriff's Office duties, he or she shall:

      (1) Notify his or her direct supervisor.

      (2) Notify his or her division commander.

   b) The employee shall make required notifications within twenty-four (24) hours of being served with a Protection Order, cited, arrested, or becomes a defendant.

   c) The division commander shall notify the Sheriff, Chief Deputy, the ADC, and an administrative commander.

   d) Any employee authorized to operate a county vehicle shall notify his or her direct supervisor and division commander if he or she receives a traffic citation while driving a county or personally owned vehicle.

   e) A conviction for a violation of any law shall be prima facie evidence that the employee has violated this policy.

   f) Any employee determined through an administrative investigation to have committed any act that violates federal, state, or local laws may be disciplined, regardless of any criminal proceedings.

3. **Knowledgeable about Policy and Procedure:** All employees shall be thoroughly knowledgeable about all policies and procedures and to follow such.

4. **Abuse Authority:**

   a) Employees shall not use their Sheriff's Office identification cards, badges, or official position for the following reasons:

      (1) Personal or financial gain for themselves or others.

      (2) Obtaining privileges for themselves or others that would not otherwise be available except in the performance of their duties.

      (3) Avoiding consequences for violations of the law.

   b) Employees shall not make, or threaten to make, false accusations of a crime or civil violation against any person, nor shall any employee misuse the authority of his or her position in any other manner.

5. **Associations:**

   a) Employees shall avoid regular or continuous associations or dealings with individuals who the employee knows, or should know, are criminals or are under criminal investigation or indictment, or who have a reputation of criminal behavior, except as necessary in the performance of official duties or when unavoidable because of a prior personal relationship with the employee.

   b) Employees unsure as to the application of this policy shall report the circumstances of the associations or dealings to the Sheriff or Chief Deputy for review.

6. **Conflict of Interest:** No deputy shall, except in emergencies, take law enforcement action in any personal matter involving himself or herself or his or her immediate family.

7. **Payments of Debts:** Employees shall not undertake any financial obligations which they know, or should know, they will be unable to meet and shall pay all just debts when due. An isolated case of financial irresponsibility shall not be grounds for discipline, however, repeated instances of shall be. Financial difficulties stemming from unforeseen medical expenses or personal disaster shall not be cause for discipline, provided that a good faith

effort to settle all accounts is being undertaken. No employee shall be disciplined for failing to pay an unjust debt, justifiably disputed debt, usurious interest, a deficiency claim for property repossessed by a vendor unless such deficiency has been entered as a court judgment after an opportunity was provided for the debtor to appear and contest the claim, or a debt barred by a discharge in bankruptcy or by the statute of limitations. No employee shall be forced by the Sheriff's Office to enter into an arrangement with one creditor that would make it impossible for him or her to pay other creditors a fair and proportionate amount or to reasonably provide his or her family with the necessities of life.

8. **Social Networking and Personal Websites:**

   a) While employees have a right to maintain personal websites and participate in social networking sites, their status as a Sarpy County Sheriff's Office employee requires that the information shared on such sites not be in violation of existing policies.

   b) Employees shall not post or discuss any information related to his or her official duties.

   c) Employees shall not post any text, photographs, videos, or audio which discredits or disgraces the Sheriff's Office or any employee, or impairs the morale, efficiency, or operation of the Sheriff's Office.

9. **Conduct Personal Activities on Duty:** Unless authorized by a supervisor or command officer, on-duty employees shall not participate in any activity that does not relate to their assigned duties, perform any function for the purpose of private gain, or make any private purchases unless for personal maintenance or sustenance.

10. **Engage in Political Activity:** No employee shall engage in any political activity while wearing a uniform or during the employee's duty hours.

11. **Solicit Business:** Except with the approval of the Sheriff or Chief Deputy, employees in uniform or on duty shall not sell books, papers, tickets, merchandise or any products, solicit subscriptions, or collect or receive money or other valuables for any purpose. No employee shall allow his or her position/name to be used in connection with any fundraising activity or business without approval of the Sheriff or Chief Deputy.

12. **Recommend Services:** Employees acting in an official capacity shall not endorse, recommend, or suggest the employment or procurement of a

particular product, professional service (including attorney or law firm), or commercial service without the approval of the Sheriff or Chief Deputy.

13. **Refuse to Provide Identification:** Citizens have the right to ask for proper identification from Sheriff's Office employees:

    a) Upon request, an employee shall provide his or her name and Sheriff's Office serial number, unless doing so creates a danger for the employee or others.

    b) When conducting Sheriff's Office business over the phone, employees shall properly identify themselves.

    c) Division Commanders may exempt employees who are conducting special operations from the identification requirements.

14. **Documents:**

    a) All documents (i.e., reports, forms, records, and all other types of written correspondence) shall be truthful, complete, accurate and impartial. Additionally, no important information shall be omitted from any type of document.

    b) Employees shall not unnecessarily change, alter, or otherwise distort the information on any official document.

    c) It is forbidden to permanently remove or destroy any Sheriff's Office official reports, records, or documents except as allowed by law or upon orders from the Sheriff or Chief Deputy.

15. **Testifying:**

    a) Court appearance notices and judicial subpoenas shall constitute an order to report for duty.

    b) When employees acquire knowledge of facts that tend to incriminate any person, it is their duty to disclose such facts to their supervisors and to testify freely concerning such facts when called upon to do so, even at the risk of self-incrimination. It is a violation of duty for employees to refuse to disclose pertinent facts within their knowledge, and such neglect of duty may result in disciplinary action up to and including termination.

16. **Consumption of Meals/Breaks:** Employees are permitted to suspend assigned activities for the purpose of having meals and taking

breaks during their shift. Supervisors may establish the time, place, and duration of meals, and employees are subject to immediate recall at any time.

Only two marked cruisers shall be at the same location for meals and breaks. Supervisors and commanders may waive this policy at their discretion.

C. **COURAGE:** Even when it's difficult or unpopular, employees shall demonstrate moral courage to do what is right, and they shall act against injustice and wrongdoing. Courage also includes physical bravery to protect oneself, co-workers, and the community.

1. **Off-Duty Enforcement Action:** While off-duty deputies are authorized (but are not required) to take lawful enforcement action, the Sarpy County Sheriff's Office expects deputies to exercise reasonable judgment prior to jeopardizing themselves or others by taking such action. A deputy shall first consider if on-duty law enforcement personnel are able to act since he or she may not be able to rely on immediate assistance or other on-duty resources. However, when law enforcement action is considered necessary given the tactical situation, offense involved, and all other factors as articulated by the involved deputy, the action taken shall be governed by the same policies, procedures, and laws that apply to on-duty personnel in a similar situation.

2. **Identification during Enforcement Action:** When taking enforcement action, any deputy not in uniform, on or off duty, shall identify himself or herself and show his or her badge, unless to do so would create a hazard to the deputy or others.

3. **Reporting Violations:** Employees shall not tolerate serious misbehavior by other employees and shall report any significant violation of law, procedure, policy, or order to an appropriate supervisor or command officer, as soon as possible.

4. **Duty to Intervene:** All employees must recognize and act upon the Duty to Intervene to prevent or stop any employee, regardless of rank, from conducting any act that is unethical, or that violates law, procedure, policy, or order (e.g., excessive force, theft, fraud, sexual misconduct, harassment, and falsifying documents).

5. **Duty to Take Action on Violations:** Supervisors and command officers shall ensure any significant violation of law, policy, procedure, or order is investigated. Supervisors and command officers shall also initiate

disciplinary action against an accused employee when warranted (see G-2100 Complaint Procedure).

D. LOYALTY: Loyalty is a commitment to co-workers and to the Sheriff's Office mission. It is paramount that we are dedicated to our profession, and that we focus on the best interest of others.

The Sheriff's Office shall also demonstrate its loyalty to the public by being transparent, honest, and responsive. These attributes strengthen community relationships.

The Sheriff's Office encourages and expects all divisions, shifts, units, teams, etc., to work together to establish a positive work culture, fulfill our mission, and safeguard our core values.

Employees shall not publicly criticize or ridicule the Sheriff's Office, its policies or procedures, or other employees by means of written, oral, or other expression where such expression is defamatory, obscene, unlawful, tends to undermine the effectiveness of the Sheriff's Office, interferes with the maintenance of discipline or is made with reckless disregard for the truth.

Employees shall not address the public or make statements in person, in writing, or via social media outlets, while presenting themselves as representatives of the Sheriff's Office without the approval of the Sheriff, Chief Deputy, or a Command Officer.

E. RESPECT: Employees shall treat all people justly, and without regards to an individual's characteristics and beliefs. Respect means to act without prejudice or preference, and to show compassion and concern. Employees shall respect everyone's right to privacy and keep all information related to official duties confidential unless disseminating information that is necessary for the performance of those duties.

1. Treatment of Others:

a) Citizens:

(1) Employees shall respect the rights of all individuals and provide equal service to anyone who may be in distress or in need of assistance. Employees shall maintain an impartial attitude toward complainants, witnesses, suspects, and violators and shall not intimidate or harass any person.

(2) Employees shall be courteous to the public and tactful in the performance of their duties. Employees are prohibited from

using coarse, violent, profane, or insolent language toward any citizen.

(3) Citizens shall never be mistreated physically or psychologically.

(4) Employees shall refrain from expressing any prejudice based on an individual's sex, race, religion, politics, national origin or other personal characteristics. Furthermore, employees shall not take action based on an individual's characteristics, such as those listed above.

b) Other Employees:

(1) All employees shall be courteous, considerate, and respectful toward other employees. Employees may not maliciously threaten or assault, verbally or physically, another employee. Furthermore, employees shall not discredit other employees, or create an intimidating, hostile or offensive work environment (see also G-1400 Harassment).

(2) Deputies shall assist and protect one another in the maintenance of order, the apprehension of offenders, the enforcement of laws and in the performance of Sheriff's Office functions.

2. Interference:

a) Employees shall not interfere with cases being handled by other deputies or by any other governmental agency unless:

(1) Ordered to intervene by a supervisor or command officer.

(2) The intervening employee believes, beyond a reasonable doubt, that an injustice would result from failing to take immediate action.

b) A deputy shall not undertake any investigation or other official action that is not ordinarily his or her responsibility without obtaining permission from his or her supervisor, except in emergencies.

c) Employees shall cooperate with all other employees of the Sheriff's Office. No employee shall withhold knowledge or information

regarding a law enforcement matter for personal benefit, gain, or due to spite or selfishness, or for any other reason.

3. **Confidentiality:**

a) **Inquiries:** Employees receiving an inquiry regarding law enforcement policies or procedures shall generally answer such questions or refer the inquiry to an employee having the requested information. However, employees shall not release any information that is confidential or pertains to tactical policies or procedures and shall advise the person making the inquiry of this restriction. If necessary, the individual should be referred to a command officer.

b) **Official Business:** All official law enforcement business and documents shall be treated as confidential, and all employees shall adhere to the following procedures:

(1) Identities: The identity of complainants, witnesses, suspects confidential informants, or the friends and families of such persons must be protected. Their identities shall only be released to persons outside of law enforcement when the ends of justice are served, and Sheriff's Office policy is followed.

(2) Information on Operations: Employees shall not release information to anyone that may delay an arrest; aid a person to escape, destroy evidence, remove stolen or embezzled goods; or hinder any law enforcement operations.

(3) Private Use of Sheriff's Office or other law enforcement Information: Employees are prohibited from using confidential or official information to advance the financial or other private interests of themselves or others.

(4) Official Business: Employees shall not enter into correspondence with any person concerning their official activities except as provided by Sheriff's Office policies or procedures, nor shall employees use Sheriff's Office stationery or forms for any purpose other than official business.

4. **Recordings:** The Sarpy County Sheriff's Office has a strong interest in maintaining a trustworthy, safe, and secure working environment. It is also necessary to protect the integrity of confidential information, investigations,

operations, and professional relationships amongst all Sarpy County employees. Therefore, Sheriff's Office employees are prohibited from using electronic recording devices in the work environment unless:

a) All Sarpy County employees who are being recorded have been verbally notified in advance; or

b) The Sheriff or Chief Deputy has authorized the recording as part of an internal affairs investigation, criminal investigation, or other work-related purpose; or

c) The recording involves an interaction or conversation with a civilian during official duties, including, but not limited to, calls for service and investigations.

d) Examples of electronic recording devices include, but are not limited to, cellular telephones, digital cameras, stand-alone video cameras, Internet accessible webcams, video recorders, audio recorders, and software designed to monitor computer use by a specific user.

e) A violation of this policy may result in disciplinary action, up to and including termination.

F. **SERVICE:** To fulfill the Sheriff's Office mission, we must serve our community morally, competently, and professionally. Each employee is expected to provide service which is considered above and beyond the norm. We must also be dedicated to ensuring the safety and security of our community.